

		trial court; the issue is whether the person who claims reliance was justified in believing the representation in the light of his own knowledge and experience.”].) Plaintiff did not allege sufficient facts to show reasonable reliance. Demurrer is sustained with 15 days leave to amend. Defendant to give notice. Case Management Conference 11-2-26 at 9:00 a.m.
2	Deharo vs. Kola Hotel, LLC 2024-01419171	Motion for Leave to Amend Plaintiff Almadelia Deharo’s (“Plaintiff”) motion for leave to file amended complaint is granted. Plaintiff moves for an order permitting her to file a proposed second amended complaint. Plaintiff contends the amendments are necessary to “clarify allegations” against newly added defendants, which she alleges are “alter egos” of other defendants, and to add allegations that Defendant Kola Hotel, LLC did not have Workers’ Compensation insurance during the subject incident. Motions for leave to amend pleadings are directed to the sound discretion of the court. “The court may, in furtherance of justice, and on any terms as may be proper, allow a party to amend any pleading.” (Code Civ. Proc. § 473, subd. (a)(1); see also Code Civ. Proc., § 576 [“Any judge, at any time before or after commencement of trial, in the furtherance of justice, and upon such terms as may be proper, may allow the amendment of any pleading or pretrial conference order”].) The court’s discretion will usually be exercised liberally so as not to deprive a party of the right to assert a meritorious cause of action or defense. The policy favoring amendment is so strong that denial of leave to amend can rarely be justified: “If the motion to amend is timely made and the granting of the motion will not prejudice the opposing party, it is error to refuse permission to amend and where the refusal also results in a party being deprived of the right to assert a meritorious cause of action or a meritorious defense, it is not only error but an abuse of discretion.” (<i>Morgan v. Superior Court</i> (1959) 172 Cal.App.2d 527, 530.)

A motion to file an amended pleading must be accompanied by a copy of the proposed amended pleading and state what allegations are proposed to be deleted, or added, if any, and where, by page, paragraph, and line number. (Cal. R. Court 3.1324(a).) Additionally, it must include a supporting declaration explaining: “(1) The effect of the amendment; (2) Why the amendment is necessary and proper; (3) When the facts giving rise to the amended allegations were discovered; and (4) The reasons why the request for amendment was not made earlier.” (Cal. R. Court 3.1324(b).)

Here, the Court finds Plaintiff has substantially complied with Rule 3.1324 by submitting her proposed SAC and a supporting declaration from her counsel explaining the effect of the amendment, why it is necessary and proper et al. Although Defendant Vagabond Inn Corporation opposes the motion on the grounds that the motion “does not adequately explain when [Plaintiff] discovered the alleged facts supporting leave to amend or why she did not seek leave earlier,” the Court does not find this argument to be persuasive.

Defendant Vagabond Inn Corporation also claims that the proposed SAC “fails to plead facts supporting alter-ego, successor-in-interest, or joint-venture liability against the Vista entities.” (Opp’n at pp. 5-7.) The Court does not find this argument to be persuasive, either. As explained in Rutter:

Ordinarily, the judge will *not* consider the validity of the proposed amended pleading in deciding whether to grant leave to amend. Grounds for demurrer or motion to strike are premature. After leave to amend is granted, the opposing party will have the opportunity to attack the validity of the amended pleading. (Cal. Prac. Guide Civ. Pro. Before Trial at ¶ 6:644, emphasis in original.)

Finally, Defendant Vagabond Inn Corporation argues that the “timing and substance of the proposed amendment further support denial of leave,” because “[t]he motion will not be heard until August 3, 2026, and the trial is set for April 19, 2027.... Thus, the proposed amendment would require the parties to investigate and litigate complex corporate liability issues within an already limited pretrial schedule.” (Opp’n at pp. 7-8.) It is not clear that the amendment would delay the current trial date, given the discovery that Plaintiff has already completed regarding her proposed amendment. However, to the extent a trial continuance is necessary, the parties may raise that issue with the Court.

		Plaintiff shall file her Second Amended Complaint by 08/14/26 and serve it in compliance with the Code. Plaintiff is ordered to give notice of the ruling. CMC set 11-2-26 at 9:00 a.m.
3	Doe vs. Anaheim Elementary School District 2025-01498911	Demurrer to Complaint / Motion to Strike (1) DEMURRER Defendant Anaheim Elementary School District’s (“AESD”) demurrer to Plaintiff Jane Ark Doe’s Complaint is overruled. First, Defendant’s demurrer is untimely. In addition, it failed to meet and confer prior to filing its demurrer pursuant to Code Civ. Proc., § 430.41. Defendant was served with the Complaint on 12/4/25. (ROA 14.) The demurrer was filed and served on 3/2/26, well past the initial 30-day deadline and the subsequent automatic 30-day extension pursuant to § 430.41.) In Defense counsel’s declaration filed on 1/2/26 regarding the automatic 30-day extension, he acknowledges both that he is required to meet and confer with Plaintiff’s counsel and also that the new deadline for filing Defendant’s motions would be on February 4, 2026. (ROA 25, Kostrenich Decl., ¶¶ 5-8.) Yet without explanation for the lateness or the failure to meet and confer, Defendant did not file its demurrer until nearly one month later, on March 2, 2026. No <u>timely</u> reply brief was filed offering any explanation for these procedural defects. The Court has discretion to either consider the demurrer, or overrule the demurrer because it is untimely. (See <i>Jackson v. Doe</i> (2011) 192 Cal.App.4th 742, 749 (demurrer was only filed 8 days after the expiration of the 30-day deadline).) Because Defense counsel knowingly filed and served the demurrer late – 26 days after the deadline that was already extended once – the Court will exercise its discretion to overrule the demurrer on this ground. The deadline was extended by statute due to Defendant’s admitted inability to meet and confer; and yet, Defendant still